

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302215	COPLEY VS JOHNSON, M.D.	PLAINTIFF'S MOTION FOR PREJUDGMENT INTEREST PURSUANT TO CIVIL CODE § 3291

Tentative Ruling: Hearing is vacated as moot.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2302215	COPLEY VS JOHNSON, M.D.	MOTION TO CONFORM JUDGMENT TO MICRA

Tentative Ruling: Hearing is vacated as moot.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2302215	COPLEY VS JOHNSON, M.D.	MOTION TO TAX COSTS

Tentative Ruling: Memorandum of Costs is stricken. Hearing is vacated as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2203209	WYNNE V. WYNNE	MOTION TO DISQUALIFY COUNSEL

Tentative Ruling: Defendant/Cross-Complainant James Wynne, and Defendant A. Scott Kalkware, personal representative of the Estate of Francis Marsh's Motion to Disqualify Counsel Sarnowski is granted.

Plaintiff/Cross-Defendant Kim Wynne, individually and as successor in interest to Mark Wynne, and Cross-Defendants W. Scott Tatum and Jodi V. Schmaltz Tatum's Motion to disqualify Counsel Lucal is denied.

A trial court's authority to disqualify an attorney derives from its inherent power to "control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." (Code Civ. Proc., § 128(a)(5); see *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145 (*Speedee*); see also *Oaks Management Corp. v. Sup. Ct.* (2006) 145 Cal.App.4th 453, 462.)

A disqualification motion involves a conflict between a client's right to counsel of his or her choice, on the one hand, and the need to maintain ethical standards of professional

responsibility, on the other. (*City and County of San Francisco v. Cobra Solutions, Inc.* (2006) 38 Cal.4th 839, 846.) Although disqualification necessarily impinges on a litigant's right to counsel of his or her choice, the decision on a disqualification motion "involves more than just the interests of the parties." (*SpeeDee, supra*, 20 Cal.4th at p. 1145.) When ruling on a disqualification motion, "[t]he paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process." (*Ibid.*; see also *Clark v. Sup. Ct.* (2011) 196 Cal.App.4th 37, 48 (*Clark*).) A trial court's ruling on a disqualification motion is reviewed under the deferential abuse of discretion standard. (*SpeeDee, supra*, 20 Cal.4th at pp. 1143–1144.)

California Rules of Professional Conduct, rule 3.7(a) (formerly rule 5-210(B)) provides:

- (a) A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless:
 - (1) the lawyer's testimony relates to an uncontested issue or matter;
 - (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or
 - (3) the lawyer has obtained informed written consent from the client. If the lawyer represents the People or a governmental entity, the consent shall be obtained from the head of the office or a designee of the head of the office by which the lawyer is employed.

This advocate-witness rule, prohibits an attorney as acting as an advocate and a witness in the same proceeding. (*Doe v. Yim* (2020) 55 Cal.App.5th 573, 581.)

Both sides appear to have client consent declarations agreeing to their respective attorneys' testimony under Rule 3.7(a)(3). However, a trial court retains discretion to disqualify a likely advocate-witness as a counsel when there is a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process, irrespective of the client consent. (*Doe, supra*, 55 Cal.App.5th 581-582.)

The court considers whether counsel's testimony is actually needed, the possibility opposing counsel is using the motion for tactical reasons, and the combined effects of the strong interest parties have in representation by counsel of their choice. (*Id.* at 583.) The court also considers the significance of the attorney's testimony, the weight of the testimony, and the availability of other witnesses or documentary evidence by which these matters may be independently established. (*People v. Rices* (2017) 4 Cal.5th 49, 66 (applying former Rule 5-210).) The moving party must demonstrate by a convincing demonstration of potential injury to the integrity of the judicial process, based on a factual record and not overarching statements of policy of conclusory allegations. (*Geringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 826.)

For example, in *Doe, supra*, the ex-wife represented her adult daughter in filing an action against the ex-husband, asserting that the ex-husband sexually abused the daughter when the daughter was a minor. (55 Cal.App.5th at 578-579.) The trial court granted the ex-husband's motion to disqualify on the grounds that the ex-wife would be

a witness which would undermine the integrity of the judicial process as it would confuse the jury. (*Id.* at 579-580.) The appellate court affirmed on the grounds that the ex-wife was a key witness at trial, the dual role posed a risk of misleading the jury which could prejudice the ex-husband. (*Id.* at 584.) For example, the ex-wife's testimony on a key issue in where there was conflicting testimony could lead the ex-wife to argue that her testimony is more credible than conflicting evidence. (*Id.* at 584-585.)

In *Kennedy v. Elridge* (2011) 201 Cal.App.4th 1197, 1201, there was a bitter custody dispute over an infant child between the mother and father, which led to the paternal grandfather representing the father. The mother moved to recuse the grandfather from representing the father. (*Id.* at 1201.) The court found the grandfather was certain to be a witness which required him to tell the truth, while being an advocate requires him to get the best result for his client. (*Id.* at 1209.) Therefore, there was a conflict in his status. (*Ibid.*) The court found there was no abuse of discretion in disqualifying the grandfather. (*Id.* at 1213.)

In contrast, in *Geringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 816, a lender sued the guarantors for outstanding debt that resulted in a settlement. Afterwards, the guarantors' company sued to return funds it had paid to the lender which resulted in the lender cross-claiming regarding the scope of the settlement agreement, including a claim that the guarantor fraudulently induced the lender to sign the settlement agreement. (*Id.* at 817.) A month before trial, the lender's counsel indicated he would testify at trial regarding the settlement agreement to which the guarantors sought to disqualify counsel. (*Id.* at 818.) The court found that the lender had a right to be represented by counsel of its choice, and would be extremely prejudiced by counsel's disqualification due to the lengthy involvement of counsel. (*Id.* at 823.) The court also found that the delay was filed for tactical reasons since it was clear to the parties of counsel's involvement. (*Id.* at 824.) The court then found that there was no clear explanation of prejudice to the guarantors. (*Id.* at 825.) Finally, the court found that there was an inadequate showing of harm to the judicial process. (*Id.* at 826.) Accordingly, the court reversed the disqualification. (*Id.* at 827.)

In *Lopez v. Lopez* (2022) 81 Cal.App.5th 412, 416, a sister (then appearing pro per) sued her brother for false accusations of harm. The sister ultimately substituted her husband (counsel) to represent her, even though the brother had sent emails to the husband. (*Id.* at 417.) Two months before trial, the brother moved to disqualify counsel based on the advocate-witness rule which the trial court granted. (*Id.* at 418-421.) The appellate court found that the trial court failed to apply the proper standards. (*Id.* at 424.) There was no finding that the husband's disqualification was necessary, and the risk of misleading the jury was speculative. (*Id.* at 424-425.) There was uncertainty as to the testimony, whether counsel was a key witness, or the heightened interest in the plaintiff's choice of counsel. (*Id.* at 427.)

SARNOWSKI DISQUALIFICATION:

It is undisputed that the Marsh parties deposed Sarnowski for seven hours on 6/5/26, with full privilege waiver. He is a material witness. During his deposition, Sarnowski admitted that he consulted with Mark during the enforcement proceedings (Sarnowski

Depo., p. 32:5-12), worked with Mark during the negotiations (*id.* at 60:4-10), he was communicating with the Tatums during the settlement negotiations (*id.* at 65:11-20), his views on the Marsh parties' violation of the settlement (*id.* at 74:13-22), that they blew the deadline for payment (*id.* at 76:8-22), that he never told Lucal about the need for a statement of identity/information form required by escrow (*id.* at 78:4-7), the negotiations and breakdown along with his understanding and strategy during the enforcement proceedings (*id.* at 98:3-259:3), that Kim could not get a loan because a lender required documentation from the Marsh parties (*id.* at 141:15-22), the probate proceedings (*id.* at 197:3-203:9), etc.

The Marsh parties divide Sarnowski's testimony into ten categories, but fails to address the key fact as to whether Sarnowski's testimony is actually needed as to all categories. For example, category 1 (conflict waivers), 5 (Mark paying for and controlling all counsel), 6 (Court's prior rulings are binding), and 10 (preparing false discovery responses)—the Marsh parties fail to demonstrate the relevance of this to the actual issues for trial. As for categories 4 (Sarnowski's involvement with third parties), 7 (Sarnowski's statement that there was no evidence of defects or clouds in title at the time) and 8 (whether Kim could get title insurance and that Sarnowski was unsure if Kim applied for a loan), again the Marsh parties fail to demonstrate that Sarnowski's testimony is actually needed rather than having others, including Kim and the third parties testify.

As for category 2 (Sarnowski's involvement in the settlement negotiations), the Marsh parties merely conclude that Sarnowski was involved in fraud as previously alleged in their pleading but fail to point out where in Sarnowski testified about his fraud or facts demonstrating fraud.

No. 3 involves the enforcement proceedings in the underlying action. No. 9 involves the proposed stipulated quiet title judgment. These heavily involve Mark, who is deceased and can no longer testify. This supports a finding that Sarnowski is a material witness on contested facts of which others cannot testify. The Kim parties assert that the documents speak for themselves, but if the key issue is intent, then it is not clear that documents alone will suffice. Accordingly, the first factor is shown.

As to the argument that the Marsh parties are using this as a tactical reason, this issue was only first raised by them in June—shortly after Sarnowski's deposition. By the Marsh parties' own admissions via their cross-complaints, they tried to assert a fraud claim against Sarnowski bringing him into a party. Thus, the knowledge that Sarnowski was a key witness should have been apparent from the beginning of litigation—not right before trial. However, the court raised this issue *sua sponte* and the court declared a mistrial.

For the third factor, this weighs in favor of the Kim parties as they have obtained a conflict waiver—albeit—after Sarnowski's deposition. However, the Kim parties do not submit any declarations as to any prejudice they will suffer from the disqualification of counsel.

However, as to harm to the judicial process, here, Sarnowski would have the same problems as reflected by the counsel in *Doe*—testifying truthfully but also advocating for the Kim parties. As Sarnowski is the only one who can testify as to Mark’s intentions about certain things, there can be conflicting testimony could lead parties to argue that his testimony is more credible than conflicting evidence. In short, a jury might find Sarnowski more credible. Thus, here, as in *Doe*, Sarnowski’s dual role will mislead the jury, in turn, harming the judicial process.

LUCAL DISQUALIFICATION

In contrast to Sarnowski, it is not clear what and how Lucal’s testimony is material. It is clear that there are authentication of documents—which could be remedied by admissions or stipulation. In their motion, the Kim parties state that “Lucal possesses personal knowledge concerning the negotiation and attempted performance of the settlement, the custody and release of the deeds, the ancillary probate, the Heritage and Five Star escrows, Chicago Title’s cancellation, the recording of the deeds outside escrow, and the communications and conduct giving rise to the present claims and cross-claims.” This is based on documents that the Kim parties rely on. Yet, they do not identify what exactly they want Lucal to testify as to, whether Lucal’s testimony is necessary, and whether Lucal is the only witness who can testify as to those issues. There is no indication that the Marsh parties could not testify as to these issues. Also, the Marsh parties submit declarations indicating that they cannot afford another attorney. (James Wynne Decl. ¶¶8; Kalkwarf Decl. ¶¶8.) The prejudice is shown. If the only indication that Lucal is testifying as to authentication of documents (which can be accomplished via admissions or stipulation), there is limited confusion for the jury.